IN THE HIGH COURT OF SINDH, KARACHI
Present:
* Hon'ble Mr. Justice Syed Mansoor Ali Shah
* Hon'ble Mrs. Justice Ayesha A. Malik

Crl. Appeal No. 403/2016
Citation: PLD 2016 Lah 340
Matter ID: MAT-TAXA-2016-171

BETWEEN:
State Bank of Pakistan ... Appellant / Petitioner
VERSUS
The State through Advocate General Punjab ... Respondent

LEGAL TOPIC: Taxation - Unexplained Income & Assessment
STATUTES CITED: Income Tax Ordinance 2001, S. 111, S. 122, Constitution Art 199

JUDGMENT
1. This judgment disposes of Crl. Appeal No. 403/2016, directed against the final judgment rend ered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attor ney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Con stitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied i n Income Tax Ordinance 2001, S. 111 were disregarded, thereby causing grave miscarriage of just ice. On the contrary, learned counsel for the respondent defended the impugned judgment, assert ing that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on rec ord clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Income Tax Ordinance 2001, S. 111 and guara nteed fundamental rights, this petition is allowed. The impugned judgment is set aside and matt er is remanded for decision afresh on merits.

Decided on: 22 October 2016.